

The Merchant Shipping (Musters) Rules, 1968

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Union of India - Act

The Merchant Shipping (Musters) Rules, 1968

UNION OF INDIA

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The Merchant Shipping (Musters) Rules, 1968

Rule THE-MERCHANT-SHIPING-MUSTERS-RULES-1968 of 1968

Published on 3 July 1968

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The Merchant Shipping (Musters) Rules, 1968

Published vide Notification Gazette of India, 1963, Part 2, Section 3(i), page 1595.

1787.

G.S.R. 1284, dated 3rd July 1968. - In exercise of the powers conferred by subsection (1) read with Cls. (a), (i), (k), (m) and (p) of sub-section (2) of Section 288 of the Merchant Shipping Act, 1958 (

44 of 1958

), and in supersession of the Indian Merchant Shipping (Musters) Rules, 1956, the Central Government hereby makes the following rules, the same having been previously published as required by the said section, namely:-

1.

Short title, application and commencement.

(1)

These rules may be called the Merchant Shipping (Musters) Rules, 1968.

(2)

They shall apply to.-

(i)

All sea going Indian ships, wherever they may be;

(ii)

other ships while they are within any port in India;

Provided that these rules shall not apply to a ship by reason of her being within a port in India, if she would not have been in any such port but for stress of weather or any other circumstance which neither the master nor the owner nor the charterer (if any) of the ship could have prevented or forestalled.

(3)

They shall come into force at once.

2.

Definitions.

- In these rules -

(a)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)

"muster" includes a boat-drill and a fire-drill;

(c)

"official log book" means the official log book to be kept under Section 212 of the Act.

3.

Classification of Ships.

- For the purposes of these rules, ships shall be arranged in the following classes, namely: Class I Passenger ships (other than those falling under Classes II, III and IV) engaged on international voyages. Class II Passenger ships (other than those falling under Class IV) engaged on short international voyages. Class III Unberthed Passenger ships (other than ships of Class IV) engaged on international voyages. Class IV Unberthed passenger ships engaged on short international voyages. Class V Unberthed passenger ships engaged on coastal voyages. Class VI Cargo ships (other than those falling under Class VII). Class VII Cargo ships engaged on coastal voyages. Class VIII Ships not falling under Classes I to VII.

4.

Muster List.

(1)

The master of every ship of Classes I to VII shall, before the ship proceeds on a voyage, prepare a muster list showing in respect of each member of the crew the special duties which are allotted to him and the stations to which he shall go in the event of an emergency, including duties and stations applicable for extinguishing fire:

Provided that in cases in which an agreement with the crew is required to be entered into in accordance with the provisions of Section 100 of the Act, the muster list shall be prepared after the execution of such agreement.

(2)

The muster list shall assign duties to the different members of the crew in connection with,-

(a)

the closing of the watertight doors, sidescuttles, valves and closing mechanisms of scuppers, ash-shoots and fire doors;

(b)

the equipping of the lifeboats, portable radio apparatus for survival craft and other life-saving appliances;

(c)

the launching of the lifeboats and the general preparation of the other life-saving-appliances;

(d)

the muster of the passenger, if any; and

(e)

the extinction of fire.

(3)

The muster list shall assign to the members of the stewards' department of passenger ships, their duties in relation to the passengers at the time of an emergency. These duties shall include,

(a)

warning the passengers;

(b)

seeing that the passengers are suitably clad and have put on their life jackets in the proper manner;

(c)

assembling the passengers at muster stations;

(d)

keeping order in the passages and on the stairways and generally controlling the movement of passengers; and

(e)

ensuring that a supply of blankets is taken to the life-boats.

(4)

The duty of seeing that the life-boats and other life saving appliances are at all times ready for use and that the equipments in the boats are complete, shall be assigned by the muster list to one or more officers.

(5)

The muster list shall specify definite signals for calling all the crew to their boats, liferafts and fire stations in an emergency, and for indicating when the ship is to be abandoned. Such signal shall be made on the whistle or siren, and in the case of ships of Classes I and III and of ships of Class VI of 45.7 metres and over in length, they shall be supplemented by other signals which shall be electrically operated from the bridge and other suitable places.

(6)

A muster list shall be dated and signed by the master and, if after it has been prepared any change in the crew takes place which necessitates any alteration in the muster list, the master either revise the existing list or prepare a new list and affix thereon his signature and the date.

(7)

Copies of the up-to-date (or in the case of a revised list, the latest) list shall, before the ship proceeds to sea, be posted up in several parts of the ship and, in particular, in the crew's quarters and shall be kept so posted while the ship is at sea.

5.

Emergency signal for passengers.

(1)

Muster stations for all passengers shall be appointed in case of emergency and the position of those stations and the meaning of all signals affecting passengers with precise instructions as to what they should do in an emergency shall be clearly stated in Hindi, English or such other languages as are appropriate, on cards posted up in their cabins, in spaces used by unberthed passengers and in conspicuous places in other passenger quarters.

(2)

The emergency signal for summoning passengers to the muster stations shall be a succession of seven or more short blasts followed by one long blast on the whistle or siren. Such signal shall, in the case of ships of Classes I and III, be supplemented by other signals electrically-operated from the bridge and other suitable places which shall be audible thorough out the ship.

6.

Wearing of Life-jacket.

- Printed illustrations showing the correct method of putting on a life-jacket, step by step, and having detailed explanations in Hindi, English or other appropriate languages, shall be pasted on cards and exhibited in conspicuous places in each passenger accommodation.

7.

Training of crew and passengers and examination of equipment.

(1)

It shall be the duty of the master to arrange for the holding of musters and for the examination of equipment to the extent

and in the manner required by this rule.

(2)

In ships of Classes I to IV, musters of crew shall be held weekly when practicable and, in addition, in ships of Classes I and III

(a)

a muster of the crew shall be held before the ship leaves her final port of departure in India; and

(b)

a muster of the passengers shall be held within twenty-four hours after leaving port.

(3)

In ships of Class V, a muster of the crew shall take place at intervals of not more than seven days, when practicable, to ensure that the members of the crew understand and are drilled in the duties assigned to them in the event of an emergency.

(4)

In ships of Classes VI and VII, musters of the crew shall take place at intervals of not more than fourteen days, and, in the case of ships of Class VI, it shall in addition take place within twenty-four hours of the ship leaving port, if, at that port, the entire crew have been engaged or if more than 25 per cent, of the crew have been replaced.

(5)

In ships of Class VIII, the master shall take steps to ensure that the members of the crew understand the uses of the life-saving and fire appliances carried on board and know where they are kept.

(6)

Whenever a muster is held on ships of Class VI, the equipment of the boats shall be examined with a view to ensuring that it is complete.

(7)

Different groups of boats shall be used in turn at successive boat drills and the master shall ensure that every life-boat is swung out and, if practicable and reasonable, lowered at least once every four months. The musters and inspections shall be so arranged-

(a)

that the crew thoroughly understand and are practised in the duties they have to perform, including instruction, in the handling and operation of life-rafts, where these are carried; and

(b)

that all life saving appliances and fire appliances with the gear appertaining to them are always ready for immediate use.

8.

Entries in the official log book.

- The master shall record in the official log book-

(a)

the date on which the musters are held and the results thereof;

(b)

where a muster is not held within the periods specified in rule 7, or if only a part-muster is held, the reason for not holding the muster or for holding only the part-muster and the extent of the part-muster held

(c)

a report of the examination of the boats' equipment made as required under sub-rule (6) of rule 7; and

(d)

the occasions when the life-boats were lowered and swung out.

9.

Penalty.

- Whoever commits a breach of any of the provisions of these rules shall be punishable with fine which may extend to one thousand rupees and, if the breach is a continuing one with further fine which may extend to fifty rupees for every day after the first during which the breach continues.

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